

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lisa Mikell	Team: Squad #15	CCRB Case #: 201602225	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 03/17/2016 5:20 AM	Location of Incident: In front of Sean's Deli (4273 Katonah Avenue) and inside of the 47th Precinct Stationhouse		18 Mo. SOL 9/17/2017		Precinct: 47
Date/Time CV Reported Thu, 03/17/2016 9:44 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/17/2016 9:44 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Maddaloni	10016	950795	047 PCT
2. POM James Stalikas	18382	959268	047 PCT
3. POF Reyna Moran	03218	933577	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christophe Maddaloni	Abuse: Police Officer Christophe Maddaloni stopped § 87(2)(b)	A . Exonerated
B . POM James Stalikas	Abuse: Police Officer James Stalikas stopped § 87(2)(b)	B . Exonerated
C . POF Reyna Moran	Abuse: Police Officer Reyna Moran did not process § 87(2)(b)'s complaint regarding officers.	C . Unsubstantiated

Case Summary

On March 17, 2016, at approximately 5:20 a.m., § 87(2)(b) was stopped in front of Sean's Deli located at 4273 Katonah Avenue in the Bronx. He was stopped by PO Christopher Maddaloni and PO James Stalikas of the 47th Precinct for approximately ten minutes regarding a radio run concerning auto larceny taking place in the vicinity of East 235th Street and Katonah Avenue. (**Allegations A and B**).

On the same day, at approximately 9:00 a.m., § 87(2)(b) went to the 47th Precinct stationhouse to file a complaint against the officers who had stopped him earlier in the day. He was given the telephone number to the CCRB written down on a piece of paper by PO Reyna Moran (**Allegation C**).

There is no relevant video footage of this incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation during his sworn statement § 87(2)(b).
- On April 8, 2016, the Office of the New York City Comptroller confirmed that a notice of claim has not been filed regarding this incident. (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) (Board Review 02).
- This is the first complaint filed against PO Maddaloni (Board Review 03).
- This is the first complaint filed against PO Stalikas (Board Review 04).
- This is the second complaint filed against PO Moran (Board Review 05). There were two allegations made against PO Moran in case number 201304362. In this case, allegations were abuse of authority and offensive language were closed by the Board as complaint withdrawn.

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Christopher Maddaloni stopped § 87(2)(b)

Allegation B – Abuse of Authority: Police Officer James Stalikas stopped § 87(2)(b)

It is undisputed that § 87(2)(b) was stopped by a group of uniformed officers which included PO Maddaloni and PO Stalikas as he exited a deli located at the corner of East 235th Street and Katonah Avenue in the Bronx at approximately 5:20 a.m (Board Review 06).

Officers responded within roughly six minutes to a radio run concerning a white male who was attempting to break into vehicles of East 235th Street and Katonah Avenue. The description of the perpetrator provided to the officers was of a white male, approximately 6' tall, who is 40-50 years old with long white hair (Board Review 07). The perpetrator was also wearing a dark jacket. PO Maddaloni and PO Stalikas was the first unit to arrive to the scene. Upon their arrival, they observed § 87(2)(b) entering a deli in the immediate proximity of the radioed location.

Although a general description alone does not provide reasonable suspicion, a general description combined with flight or other circumstances does provide a reasonable basis for officers to conclude that a person is involved in a crime. See People v. Lacy, 960 N.Y.S.2d 407 (1st. Dept - 2013)(radio run of armed black man plus individual's flight upon seeing police officers created reasonable suspicion justifying pursuit, stop and frisk) (Board Review 08). Absent flight, a general description combined with spatial and temporal proximity to the scene of the reported crime will also provide reasonable suspicion. People v. Samuels, 977 N.Y.S.2d 654 (4th Dept - 2014) (Board Review 09). With sufficient spatial/temporal proximity to the reported crime, and to police action related to the crime, even a partial match of a general description can provide reasonable suspicion. See People v. Brown, 11 N.Y.S.3d 616 (2nd Dept - 2015)(reasonable suspicion when defendant partially matched a general description and was seen walking near railroad tracks where police had earlier pursued two suspects) (Board Review 10).

§ 87(2)(g)

It is therefore recommended that
Allegations A and B be closed as Exonerated.

Allegation C – Abuse of Authority: Police Officer Reyna Moran did not process § 87(2)(b)'s complaint regarding officers.

At approximately 9:00 a.m., on March 17, 2016, § 87(2)(b) went to the 47th Precinct stationhouse to file a complaint against the officers who had stopped him earlier in the day. He said he was given the telephone number to the CCRB and it was written down on a piece of paper by PO Moran who did not offer to take the complaint for him (Board Review 11).

PO Moran usually works patrol, but was on limited-duty and assigned as the telephone switchboard operator within the complaint room at the time of § 87(2)(b)'s visit. PO Moran did not initially remember this incident, but when presented with a photograph of § 87(2)(b) she recognized him as someone who often comes into the 47th Precinct stationhouse. PO Moran stated that § 87(2)(b) wanted to complain about an officer and requested to speak with a captain. PO Moran noted that he was not talking exclusively to her, but to other unidentified officers who

were in the general vicinity as well. PO Moran informed Mr. that he would have to wait until she was able to assist him because there were a lot of people on line in front of him that needed help. § 87(2)(b) responded, “No. I need to see the Captain, right now.” § 87(2)(b) told PO Moran that he did not want to wait and that he did not have any time and asked her for a number that he could call to file his complaint. PO Moran informed § 87(2)(b) there was a number he could call to file his complaint over the phone or he could wait to do so in person. She did not remember writing the number down for him, but she said § 87(2)(b) was pleased and said, “Thank you” before leaving the precinct (Board Review 12).

§ 87(2)(g) . It is recommended that this allegation be closed as **unsubstantiated**.

Squad: 15

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date